

GUARANTY HOLDINGS OF CALIFORNIA, INC. v CATTANEO

20CV44713

DEFENDANTS' MOTION TO DISMISS ACTION

This case involves a landlord-tenant dispute over the condition of the residence after surrender back to the homeowner. At the core of the dispute is Defendants' removal of a floating boat dock and other items on the property owned by Plaintiff Guaranty Holdings of California, Inc ("GHOC"). The original complaint was filed on May 19, 2020. On May 12, 2023, the Court granted GHOC's Motion to Amend Complaint and the First Amended Complaint (FAC) was filed on May 27, 2023. The FAC removed some of the original causes of action, but added, for the first time, a cause of action for private nuisance.

On April 25, 2025, the Court denied GHOC's motion to specially set the matter for trial before expiration of the 5-year statute under Code of Civil Procedure section 583.310. Now before the Court is a motion to dismiss pursuant to Code of Civil Procedure section 583.360 brought by Defendant Christopher Dufresne ("Dufresne") and joined by Defendant Dan Holman ("Holman") (collectively "Defendants.")

GHOC opposes the motion. The Court finds the opposition was filed timely.¹

I. Legal Standard

Code of Civil Procedure section 583.360 provides:

- (a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article.
- (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.

¹ Defendants asserted in their Reply that the opposition was late under Cal. Rule of Court 3.1342. However, that Rule applies to actions brought under Code Civil Procedure sections 583.410-583.430 and is not applicable here.

II. Analysis

GHOC opposes the motion to dismiss on the grounds that the cause of action for private nuisance, added in 2023, does not relate back to the original complaint and cannot be dismissed. (*Brumley v. FDCC California, Inc.* (2007) 156 Cal.App.4th 312.)

In *Brumley*, the original Plaintiff filed suit for asbestos injuries in 2000 and, nearly four years after filing suit, died of asbestos-linked lung cancer. His surviving wife and children then filed a third amended complaint that substituted her and their children as plaintiffs and brought claims for wrongful death. The entire matter was dismissed pursuant to Code of Civil Procedure sections 583.310 and 583.360. However, on appeal, the Court found that where added claims do not “relate back” to the original claims (that is, the new claims could have been brought by a separate lawsuit), those new claims were not barred by section 583.310. In making that determination, the Court concluded that while the plain language of the dismissal statute referred to a single “action,” precedent dictated that causes of action could be treated individually under the statute. (*Id.* at p. 322 [citing *Barrington v. A.H. Robins Co.* (1985) 39 Cal.3d 145].)

Under that logic, GHOC argues that the cause of action for private nuisance, which relies on different facts than those alleged in the original complaint, cannot be dismissed because the FAC was not filed until May 27, 2023. Thus, the five year dismissal rule would not apply.

“A private nuisance cause of action requires the plaintiff to prove an injury specifically referable to the use and enjoyment of his or her land. (*Madani v. Rabinowitz* (2020) 45 Cal.App.5th 602, 607.) A nuisance may be classified as permanent or continuing.

“In general, a permanent nuisance is considered to be a permanent injury to property for which damages are assessed once and for all, while a continuing nuisance is considered to be a series of successive injuries for which the plaintiff must bring successive actions.” (*Id.* at 608 [citations omitted].) However, the “crucial test of the permanency of a trespass or nuisance is whether the trespass or nuisance can be discontinued or abated.” (*Id.* at 608-609 [citations omitted].) Under the “abatability test” a nuisance is continuing if it can be “‘remedied at a reasonable cost by reasonable means.’” (*Ibid* [citation omitted].)

Here, GHOC original complaint did not allege a cause of action for private nuisance. Arguably, it could have brought a cause of action for private nuisance based on the removal of the dock against the relevant defendants. And that nuisance cause of action would have related back to the original complaint because that complaint's entire focus was on the removal and destruction of the dock. However, the private nuisance claim in the FAC is different. This claim focuses on the installation and position of other structures on the reservoir to "intentionally block GHOC's access to its marine deck." (FAC ¶ 55.) This claim against Defendant Cattaneo only, does not relate back to the original claim and could be brought in successive claims because the alleged nuisance is continuing. Thus, the private nuisance claim – which was not brought until 2023 – is not subject to the five-year dismissal rule until 2028.

However, the private nuisance claim is only against Defendant Cattaneo. Thus, all the other claims in the FAC, which all relate back to the original complaint, are subject to the five-year dismissal. Importantly, these are the only claims against the moving Defendants.

GHOC argues, however, that if one claim (private nuisance) is not subject to dismissal then the remaining claims are also not subject to dismissal. (*General Motors Corp. v. Superior Court of Los Angeles County* (1996) 65 Cal.2d 88.) However, *General Motors* involved a wrongful death action where the same actions, by the same people, caused both the personal injury damages and the wrongful death. This is not the same here. GHOC's actions against the moving Defendants related to the removal of the dock and various fixtures. The private nuisance action is solely against a different defendant and related to the placement of obstructions to GHOC's new dock.

Finally, the Court notes that there is a two year statute of limitations for causes of action for private nuisance. The only date referenced in the FAC is June 2020, which would make this cause of action either necessarily related back to the original filing date (and therefore subject to dismissal) or facially outside the statute of limitations (and therefore subject in in the interests of judicial economy dismissible before proceeding with granting a demurrer).

Accordingly, the Defendants' motion to dismiss is **GRANTED**; however, with ten (10) days Leave to Amend the FAC but only as to the cause of action for the private nuisance claim against Defendant Cattaneo.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare a formal Order complying with Rule 3.1312 in conformity with this Ruling.

VINCENT v MONA LEE SOLAR CA, LLC

25CV47888

DEFENDANT'S MOTION TO SET ASIDE DEFAULT

This is a breach of contract dispute arising out of the sale and installation of solar panels. Plaintiff Aben K. Vincent ("Plaintiff") alleges that he entered into a contract for the installation of solar panels by Defendant Mona Lee Solar CA LLC ("Defendant") and that the panels do not work.

Now before the Court is Defendant's Motion to Set Aside Default.

I. RELEVANT PROCEDURAL HISTORY

On February 18, 2025, Plaintiff filed a complaint against Defendant. The Complaint and Service of Summons were served by substituted service via U.S. mail on March 5, 2025. (Declaration of Jonathon Joannides ("Joannides Decl.") ¶ 6, Ex. D.) The summons shows that the items were served by mail at a business address of 5325 Elkhorn Blvd in Sacramento, California. (*Ibid.*)

According to Brittany Bartel, Director of Customer Experience at Mona Lee Solar CA LLC, when Defendant receives mail it is scanned through a virtual mailbox hosted by Post Scan Mail. (Declaration of Brittany Bartel ("Bartel Decl.") ¶ 3.) The service receives physical mail, scans it digitally and then places it in a portal for viewing and disbursement to the appropriate people. (*Ibid.*)

On February 27, 2025, Plaintiff informed Defendant that he had filed a lawsuit and that service would be forthcoming. (Bartel Decl. ¶ 9, Ex. C.) On February 28, 2025, Defendant requested an address at which he could serve Defendant because the listed address was a P.O. Box. On March 3, 2025, Ms. Bartel responded that the Defendant's business was fully remote and that the documents should be forwarded via email to her as well as the CEO of the company. (*Ibid.*)

On March 5, 2025, Mona Lee received a letter in US Mail that was scanned by the mailing services and submitted to Defendant's portal. (Bartel Decl. ¶ 4.) The proof of service shows that the items to be served were left with a Postal Annex employee. Ms. Bartel got notice of the mail on March 26, 2025, and reviewed the attached documents, attached as Exhibit A to Ms. Bartel's declaration. (*Ibid.*)